

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 24-14

AIRBOSS DEFENSE GROUP, LLC,

COMPLAINANT,

v.

FEDEX TRADE NETWORKS TRANSPORT & BROKERAGE, INC.,
MEDITERRANEAN SHIPPING COMPANY S.A. and MEDITERRANEAN
SHIPPING COMPANY (USA) INC., as agent for Mediterranean Shipping Company
S.A., and TOTAL TERMINALS INTERNATIONAL,

RESPONDENTS.

**DECLARATION OF CAMERON W. ROBERTS IN SUPPORT OF AIRBOSS
DEFENSE GROUP LLC'S RESPONSE IN OPPOSITION TO
MEDITERRANEAN SHIPPING COMPANY S.A. and MEDITERRANEAN
SHIPPING COMPANY (USA) INC.'S MOTION TO DISMISS OR STAY
PROCEEDING**

I, Cameron W. Roberts, declare:

1. I am an attorney at Roberts & Kehagiaras LLP ("R&K") and I am counsel for complainant Airboss Defense Group LLC ("ADG") in the above action.
2. I am a member in good standing of the State Bars of California and Washington and I have filed an appearance in this action.
3. As a member of a team of attorneys representing ADG in various actions in different parts of the country, I have personal knowledge of the facts I state in this declaration and I have personal knowledge of the proceedings in this above action.

4. As an attorney of ADG, I have personal knowledge that Marco Sidoti, MSC's Nationwide Demurrage/Detention/Per Diem Director, by email dated September 12, 2022, agreed to rates should the WRO 202 containers remain in the United States after September 24, 2022. Attached as Exhibit "A" is true and correct copy of the email from Marco Sidoti dated September 12, 2022.

5. As an attorney of ADG, I have personal knowledge that on May 24, 2024, I received an email from FTN, attaching FTN's pass-through invoice and MSC's charges. Attached as Exhibit "B" is a true and correct copy of the email and attachments from FTN.

6. As an attorney of ADG, I have personal knowledge that on June 19, 2024, ADG disputed FTN's invoice and MSC's charges. Attached as Exhibit "C" is a true and correct copy of the email and attachment sent to FTN.

I declare under penalty of perjury under the laws of the United States that the above is true and correct.

Dated: July 12, 2024

/s/ Cameron W. Roberts

CERTIFICATE OF SERVICE

I certify that on the 12th day of July 2024, I served the above **DECLARATION OF CAMERON W. ROBERTS IN SUPPORT OF AIRBOSS DEFENSE GROUP LLC'S RESPONSE IN OPPOSITION TO MEDITERRANEAN SHIPPING COMPANY S.A. and MEDITERRANEAN SHIPPING COMPANY (USA) INC.'S MOTION TO DISMISS OR STAY PROCEEDING** on the parties listed below by email.

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Dated: July 12, 2024



Ana Cruz